

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ADEOLA FADEYIBI and SHAWN EALEY,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
SGT. FRANTZ CHAUVET and
P.O. JOHN FREUND,

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 26, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church Street, New York, NY 10007

NYPD Sgt. Frantz Chauvet, c/o NYPD 73rd Pct., 1470 E. New York Ave., Brooklyn, NY 11212

NYPD Detective John Freund, c/o NYPD 73rd Pct., 1470 E. New York Ave., Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ADEOLA FADEYIBI and SHAWN EALEY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
SGT. FRANTZ CHAUVET and
P.O. JOHN FREUND,

Defendants.

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Plaintiffs, by their attorneys SIVIN, MILLER & ROCHE, LLP, as and for their
complaint herein, allege as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiffs were and are citizens of the United States and residents of the State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with the defendants on behalf of plaintiffs; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, maintained, and supervised the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant Sgt. Frantz Chauvet (hereinafter “Chauvet”) was and is a sergeant employed by the NYPD.

6. That at all times herein mentioned, Chauvet was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Chauvet was acting under color of state law.

8. That at all times herein mentioned, defendant P.O. John Freund (hereinafter “Freund”) was an officer employed by the NYPD, and currently is a detective employed by the NYPD.

9. That at all times herein mentioned, Freund was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Freund was acting under color of state law.

THE FACTS

11. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

12. That on June 19, 2021, at or around 1890 Eastern Parkway, Brooklyn, NY, members of the NYPD, including but not limited to Chauvet and Freund, forcibly seized plaintiffs and/or caused plaintiffs to be forcibly seized, without a warrant and without probable cause to believe that plaintiffs had committed or were about to commit any crimes or criminal violations.

13. That after plaintiffs were forcibly seized, members of the NYPD, including but not limited to Chauvet and Freund, caused plaintiffs to be handcuffed, arrested, detained, and imprisoned against their will, still without a warrant and without probable cause to believe that

plaintiffs had committed or were about to commit any crimes or criminal violations.

14. That after plaintiffs were arrested, the City of New York, by and through NYPD officers, including but not limited to Chauvet and Freund, prosecuted plaintiffs and/or caused plaintiffs to be prosecuted for crimes and criminal violations of which they were innocent and for which there was no probable cause to believe plaintiffs to be guilty.

15. That in support of the prosecutions, Freund issued and signed Criminal Court Appearance Tickets containing allegations against plaintiffs that were false and that Freund knew were false.

16. That in further support of the prosecutions, Chauvet and Freund falsely accused plaintiffs of various other criminal acts.

17. That Chauvet and Freund conveyed this false information and evidence to prosecutors and to fellow officers.

18. That the false information and evidence that Chauvet and Freund conveyed to prosecutors and to fellow officers was material in nature and likely to influence a court or jury in connection with a determination as to plaintiffs' guilt or innocence.

19. That as a result of this false information, plaintiffs suffered a denial of their liberty by being charged with various criminal offenses and being required to appear in court to defend against those charges.

20. That the aforesaid actions of the officers were intentional, spiteful, and malicious in nature.

21. That Chauvet and Freund observed the unlawful actions of their fellow officers, had the ability and opportunity to intervene to prevent or stop those unlawful actions, and intentionally and deliberately failed to do so.

22. That on or about August 18, 2021, all criminal charges against Ealey were dismissed, and the criminal proceeding terminated favorably to Ealey.

23. That on or about September 15, 2021, all criminal charges against Fadeyibi were dismissed, and the criminal proceeding terminated favorably to Fadeyibi.

24. That as a result of the foregoing, plaintiffs suffered and continue to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

25. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of Chauvet and Freund constitute an assault and battery of plaintiffs, for which Chauvet and Freund are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/False Imprisonment Under NY State Law)

27. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of Chauvet and Freund constitute a false arrest and false imprisonment of plaintiffs, for which Chauvet and Freund are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

29. Plaintiffs repeat and reallege each and every allegation set forth above as though

fully set forth at length herein.

30. That the aforementioned actions of Chauvet and Freund constitute a malicious prosecution of plaintiffs, for which Chauvet and Freund are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST CHAUVET and FREUND
(42 U.S.C. § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

31. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of Chauvet and Freund in unlawfully seizing, assaulting, and battering plaintiffs, falsely arresting and imprisoning plaintiffs, and maliciously prosecuting plaintiffs, constitute illegal seizures and deprivations of liberty of plaintiffs in violation of rights guaranteed to plaintiffs under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiffs to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION CHAUVET and FREUND
(42 U.S.C. § 1983 Claim Based On Denial Of Right To Fair Trial)

33. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid actions by the officers constitute a denial of plaintiffs' right to a fair trial, in violation of plaintiffs' rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST CHAUVEN and FREUND
(42 U.S.C. § 1983 Claim based on Failure to Intervene)

35. Plaintiffs repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That Chauvet's and Freund's failures to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

37. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Chauvet and Freund, and attorney's fees against defendants Chauvet and Freund pursuant to 42 USC § 1988, and plaintiffs also demand the costs and disbursements of this action.

Dated: New York, New York
July 26, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 26, 2022

Edward Sivin

EDWARD SIVIN